

COURT ONLINE COVER PAGE

IN THE LABOUR COURT OF SOUTH
AFRICA HELD AT CAPE TOWN

CASE NO: **2026-077546**

In the matter between:

Wilbur William Matthee

Plaintiff / Applicant

and

**Afrocentric Health (RF) (PTY)
LTD, Medscheme Holdings (PTY)
LTD, Afrocentric Investment Corporation
Limited**

Defendant / Respondent

Founding Affidavit

NOTE: This document was filed electronically by the Registrar on 15/4/2026 at 12:25:06 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED BY:

**Registrar of The Labour Court,
Cape Town**

IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN
CASE NO: 2026-077546

WILBUR WILLIAM MATTHEE
Applicant
and
AFROCENTRIC HEALTH (RF) (PTY) LTD
First Respondent
and
MEDSCHEME HOLDINGS (PTY) LTD
Second Respondent



INDEX OF DOCUMENTS AND ANNEXURES

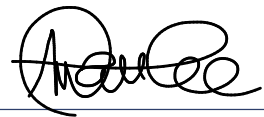
(Notice of Motion, Founding Affidavit and Annexures A – H)

DOCUMENT	DESCRIPTION	PAGES
Notice of Motion	Application for Repayment of Unlawfully Recovered Remuneration BCEA s34(1) and s34(2) read with s77A of the BCEA	1–4
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NOTE: The documents listed above constitute the complete application bundle filed by the Applicant in these proceedings. Annexures A to H are attached hereto in sequence and are incorporated by reference into the Founding Affidavit.

Dated at Cape Town on 13 March 2026.



WILBUR WILLIAM MATTHEE

Applicant in Person

15 Bellevue Street, Voorbrug, Cape Town, 7100

Email: info@ethichawks.co.za | wilburmat@gmail.com

Tel: 069 635 1435 / 063 378 8782

“FINAL”
IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN
CASE NO: 2026-077546

In the matter between:

WILBUR WILLIAM MATTHEE

Applicant

and

AFROCENTRIC HEALTH (RF) (PTY) LTD

(Contracting Employer — signatory to the Applicant's employment contract)

First Respondent

and

MEDSCHEME HOLDINGS (PTY) LTD

(Registration Number: 1983/003221/07)

(Operational entity and payroll administrator)

Second Respondent



**NOTICE OF MOTION (APPLICATION FOR REPAYMENT OF UNLAWFULLY
RECOVERED REMUNERATION) BCEA S34(1) AND S34(2) — IN TERMS OF S77A OF
THE BCEA**

TAKE NOTICE THAT the Applicant intends to make application to this Honourable Court, on a date and time to be allocated by the Registrar, for an order in the following terms:

1. DECLARATORY RELIEF

- 1.1** DECLARING that the recovery of R14,811.77 processed against the Applicant's remuneration on 23 July 2025 — coded as 'Unpaid Leave Recovery' (R13,824.32) and 'Unpaid Leave' (R987.45) — constitutes a deduction from remuneration within the meaning of Section 34(1) of the Basic Conditions of Employment Act 75 of 1997 ('BCEA').

- 1.2** DECLARING that the said deduction was made without the Applicant's prior written consent and without authorisation by any court order, arbitration award, collective agreement, or law, and is therefore unlawful.
- 1.3** DECLARING that the deduction exceeded 25% of the Applicant's gross remuneration in a single pay cycle, in further breach of Section 34(2) of the BCEA and the Respondents' own HCBP Policy.

2. PAYMENT ORDER

- 2.1** ORDERING the First, Second, jointly and severally, the one paying the others to be absolved, to repay the Applicant the sum of R14,811.77 (Fourteen Thousand Eight Hundred and Eleven Rand and Seventy-Seven Cents) within 7 (seven) days of the date of this Order.



3. INTEREST

- 3.1** INTEREST: ORDERING the Respondents jointly and severally to pay interest on the sum awarded under paragraph 2.1 above (R14,811.77) at the prescribed legal rate calculated from 23 July 2025 to the date of final payment.

4. COSTS

- 4.1** ORDERING the Respondents jointly and severally to pay the costs of this application on a punitive scale, having regard to:
- (a) The deliberate misrepresentation by the Second Respondent's manager that the group does not permit staggered debt recovery, when the Respondents' own Ill-Health and Incapacity Policy expressly requires prior HCBP consultation and staggered arrangements;
 - (b) The Respondents' HCBP failure to consult with the Applicant before making the deduction, in breach of their own Policy;
 - (c) The Respondents' prior written notice from the Applicant's treating specialist psychiatrist, Dr Jacques Malan (FCPSYCH(SA)), that the Applicant was at risk and required urgent re-admission — notice which the Respondents held before making the deduction and ignored entirely; and
 - (d) The institutional bad faith demonstrated by the Respondents' group HR representative in sworn proceedings before the CCMA, in which the Applicant's specialist-diagnosed psychiatric disability was characterised as a cynical excuse.

5. RESERVATION OF RIGHTS

- 5.1** DIRECTING that the relief granted herein is without prejudice to the Applicant's rights to pursue further relief against all three Respondents, including constructive

dismissal, unfair labour practice, class action, Employment Equity Act disability discrimination claims, and all further claims under separate proceedings.

6. FURTHER AND/OR ALTERNATIVE RELIEF

TAKE NOTICE FURTHER that the Founding Affidavit of WILBUR WILLIAM MATTHEE, annexed hereto together with Annexures A to H, will be used in support of this application.

The Founding Affidavit and annexures establish the following core facts:

- (a) The Applicant's signed employment contract is with the First Respondent
- (b) The unlawful deduction of R14,811.77 was processed by the Second Respondent on 23 July 2025 without written consent (Annexure A — payslip);
- (c) The deduction exceeded the 25% statutory and policy cap (Annexure A and Annexure B — HCBP Policy);
- (d) The Respondents' manager misrepresented the staggering policy in writing (Annexure C);
- (e) No consultation was conducted despite the Applicant's request and the employer's own policy obligation;
- (f) The employer had prior written notice from a specialist psychiatrist of the Applicant's condition and vulnerability before making the deduction (Annexure H); and
- (g) The Respondents' group HR representative made a sworn statement in CCMA proceedings dismissing the Applicant's specialist-diagnosed psychiatric condition, without any medical qualifications to do so.



TAKE NOTICE FURTHER that if any Respondent intends to oppose this application, it must:

- (a) Deliver a Notice of Intention to Oppose within 10 (ten) days of receipt of this Notice;
- (b) Deliver an Answering Affidavit within 15 (fifteen) days thereafter; and
- (c) Appoint an address within 15 kilometres of the office of the Registrar of this Court at which it will accept notice and service of all documents in these proceedings.

DATED at CAPE TOWN on this 13th day of MARCH 2026.

WILBUR WILLIAM MATTHEE

Applicant in Person

Email: info@ethichawks.co.za | wilburmat@gmail.com

Ph: 069 635 1435 / 063 378 8782

Address: 15 Bellevue Street, Voorbrug, Cape Town, 7100

TO:

THE REGISTRAR OF THE LABOUR COURT

Cape Town

AND TO:

AFROCENTRIC HEALTH (RF) (PTY) LTD

First Respondent

37 Conrad Street, Florida Glen, Roodepoort, 1709



AND TO:

MEDSCHEME HOLDINGS (PTY) LTD

Second Respondent

The Boulevard Office Park, Corner Searle and Pontac Streets

Woodstock, Cape Town, 7925

“FINAL”
IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN
CASE NO: 2026-077546

In the matter between:

WILBUR WILLIAM MATTHEE

Applicant

and

AFROCENTRIC HEALTH (RF) (PTY) LTD

First Respondent

and

MEDSCHEME HOLDINGS (PTY) LTD

Second Respondent



FOUNDING AFFIDAVIT IN SUPPORT OF NOTICE OF MOTION

I, the undersigned,

WILBUR WILLIAM MATTHEE

do hereby make oath and say:

PART A — INTRODUCTION AND LOCUS STANDI

1. I am an adult male, a Specialist Registered Nurse. I hold a Postgraduate Diploma in Health Services Management (NQF Level 8, SAQA ID 118316, CPUT). I reside at 15 Bellevue Street, Voorbrug, Cape Town, 7100. I am the Applicant in these proceedings.
2. I am duly authorised to bring this application in my personal capacity as the employee whose remuneration was unlawfully deducted by the Respondents.
3. The facts contained in this affidavit are within my personal knowledge unless the context indicates otherwise, and are true and correct to the best of my knowledge and belief.

4. Where I make legal submissions, I do so on the basis of my understanding of the applicable law, and I respectfully request that this Honourable Court correct any errors of law.

PART B — THE RESPONDENTS

5. The First Respondent, AFROCENTRIC HEALTH (RF) (PTY) LTD ('AfroCentric Health'), is a private company incorporated and registered in terms of the laws of the Republic of South Africa, with its principal place of business at 37 Conrad Street, Florida Glen, Roodepoort, 1709. AfroCentric Health is the contracting employer and is the signatory to my employment contract.
6. The Second Respondent, MEDSCHEME HOLDINGS (PTY) LTD ('Medscheme'), is a private company with registration number 1983/003221/07, with its principal place of business at The Boulevard Office Park, Corner Searle and Pontac Streets, Woodstock, Cape Town, 7925. Medscheme is the operational entity and payroll administrator that processed the unlawful deduction against my remuneration. Medscheme issued my payslips, managed my UIF submissions, and administered my salary payments throughout my period of employment.
7. I will refer to the First, Second, collectively as 'the Respondents' or 'the Group.'



PART C — EMPLOYMENT BACKGROUND

8. I was employed by AfroCentric Health with effect from approximately May 2024, in the capacity of a Nurse, deployed within the Medscheme operational environment.
9. Throughout my employment, my payslips were issued by Medscheme, my salary was paid from Medscheme's payroll system, my UIF contributions were declared and deducted by Medscheme, and my day-to-day operational management was conducted within the Medscheme corporate structure. Accordingly, the employer functions were at all material times exercised jointly by all three Respondents, constituting a multi-entity employer arrangement within the meaning of the Labour Relations Act 66 of 1995 and the Basic Conditions of Employment Act 75 of 1997 ('BCEA').
10. At all material times to this application, I held NQF Level 8 qualifications with associated professional obligations under the NQF Act 67 of 2008, including obligations to identify, report and act upon systemic governance failures in the health sector environment in which I operated. My employment was governed by my employment contract and the Respondents' Human Capital Business Partner ('HCBP') Policy (Annexure B).

PART D — THE APPLICANT'S PSYCHIATRIC DISABILITY AND THE RESPONDENTS' PRIOR KNOWLEDGE

11. Prior to and at the time of the deduction on 23 July 2025, I had been diagnosed with a serious and documented psychiatric disability. My treating specialist psychiatrist, Dr Jacques Malan (FCPSYCH(SA)), had placed the Respondents on formal written notice of my condition, the severity of my symptoms, and the urgent need for my re-admission for psychiatric treatment.
12. This written notice from Dr Malan was received by the Respondents before the unlawful deduction was processed on 23 July 2025. The Respondents thus had actual prior knowledge of my psychiatric vulnerability and the potential harm that a devastating financial deduction would cause to my mental health and overall wellbeing. A copy of Dr Malan's communication to the employer is annexed hereto as Annexure H.
13. Notwithstanding this prior knowledge, the Respondents proceeded to deduct R14,811.77 from my remuneration in a single pay cycle without consultation, without my written consent, and without any regard for the catastrophic financial and psychological impact this would have on me.
14. The Respondents' subsequent characterisation of my specialist-diagnosed psychiatric condition as a 'cynical excuse' in sworn proceedings before the CCMA — by a group HR representative lacking any medical qualifications — constitutes wilful disregard of a documented disability and further evidences the bad faith that permeates the Respondents' conduct.



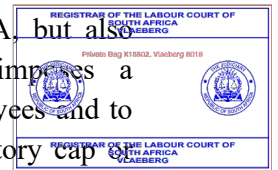
PART E — THE UNLAWFUL DEDUCTION OF R14,811.77

15. On 23 July 2025, the Second Respondent processed a deduction against my remuneration in the total amount of R14,811.77, comprising:
 - (a) 'Unpaid Leave Recovery': R13,824.32
 - (b) 'Unpaid Leave': R987.45

TOTAL: R14,811.77
16. A copy of my payslip for the July 2025 pay period reflecting these deductions is annexed hereto as Annexure A.
17. At no stage before or at the time of this deduction did I provide my written consent to the recovery of any sum from my remuneration. Section 34(1) of the BCEA prohibits an employer from making any deduction from an employee's remuneration unless: (i) the employee consents in writing to the deduction; (ii) a court order authorises the deduction; (iii) an arbitration award authorises the deduction; (iv) a collective agreement authorises the deduction; or (v) a law requires the deduction. None of these grounds existed in respect of the deduction of R14,811.77.
18. I was never asked to sign any written consent form. No court order existed. No arbitration award existed. No collective agreement authorised the deduction. No law permitted this unilateral recovery in the manner carried out. The deduction was therefore unlawful in terms of Section 34(1) of the BCEA.

PART F — BREACH OF THE 25% STATUTORY CAP (SECTION 34(2) OF THE BCEA)

19. Section 34(2) of the BCEA provides that where a deduction is made to reimburse an employer for loss or damage caused by the employee, the total amount of the deduction may not exceed one-quarter (25%) of the employee's remuneration in respect of that pay period.
20. My gross remuneration for the relevant pay period was approximately R36,601.09. The deduction of R14,811.77 represents approximately 40.47% of my gross remuneration — nearly double the statutory maximum of 25%.
21. This 40.47% deduction not only breached Section 34(2) of the BCEA, but also breached the Respondents' own HCBP Policy, which expressly imposes a corresponding obligation on the employer to consult with affected employees and to arrange staggered recovery where the deduction would exceed the statutory cap or cause financial hardship. A copy of the relevant HCBP Policy provisions is annexed hereto as Annexure B.



PART G — MISREPRESENTATION REGARDING STAGGERED RECOVERY

22. Prior to the deduction being processed, I formally raised the matter with the Respondents' management and requested that any recovery of unpaid leave be staggered over multiple pay periods to avoid financial catastrophe. I specifically pointed to the employer's own HCBP Policy requiring consultation and staggered arrangements.
23. In response, a manager of the Second Respondent informed me in writing that the AfroCentric group policy does not permit staggered debt recovery. This was a deliberate and material misrepresentation. The Respondents' own HCBP Policy — which the same manager was obliged to know and apply — expressly requires staggering and prior consultation in circumstances such as mine.
24. A copy of the written misrepresentation is annexed hereto as Annexure C. This misrepresentation prevented me from taking timely legal steps to interdict the deduction and constitutes bad faith conduct independently warranting punitive costs.

PART H — FINANCIAL AND PERSONAL CONSEQUENCES OF THE UNLAWFUL DEDUCTION

25. The deduction of R14,811.77 in a single pay cycle — representing 40.47% of my gross earnings — had immediate and devastating financial consequences, including but not limited to:
 - (a) I was unable to meet my basic living expenses, including rental obligations, resulting in the issuing of eviction notices;

- (b) I was compelled to make an emergency withdrawal from my retirement fund, incurring tax penalties and permanently diminishing my retirement savings;
- (c) I was rendered in a state of financial destitution for an extended period;
- (d) I fell into arrears with the South African Nursing Council ('SANC') in respect of annual registration fees, resulting in my deregistration — thereby destroying my professional nursing career advancement prospects; and
- (e) My psychiatric condition was materially worsened by the financial devastation and the institutional bad faith I experienced, requiring additional medical intervention and prolonged recovery.

PART I — PARALLEL CCMA PROCEEDINGS AND INSTITUTIONAL BAD FAITH



- 26. These proceedings are brought in parallel with ongoing CCMA arbitration proceedings (Case Numbers WECT23564-25 and WECT24486-25) arising from my constructive dismissal and the Respondents' unfair labour practices.
- 27. In the CCMA proceedings, the Respondents' group HR representative — Xolile Vincent Manyathi — deposed to a sworn statement dismissing my specialist-diagnosed psychiatric disability as a 'cynical excuse' advanced to avoid accountability. This characterisation was made without any medical qualifications, in disregard of Dr Malan's formal clinical opinion, and in direct contradiction of the disability discrimination protections afforded by the Employment Equity Act 55 of 1998.
- 28. This sworn statement constitutes further evidence of the Respondents' institutional bad faith and warrants the punitive costs order sought in paragraph 4 of the Notice of Motion.

PART J — CAUSE OF ACTION

- 29. My cause of action in these proceedings arises under Section 77A of the BCEA, read with Sections 34(1) and 34(2) thereof. The Labour Court has exclusive jurisdiction to hear this matter.
- 30. The elements of my cause of action are established as follows:
 - (a) There was a deduction from my remuneration: ESTABLISHED — R14,811.77 deducted on 23 July 2025 (Annexure A);
 - (b) The deduction was made without written consent: ESTABLISHED — no written consent was ever obtained (paragraphs 18–19 above);
 - (c) No lawful basis existed for the deduction: ESTABLISHED — no court order, arbitration award, collective agreement or law authorised it (paragraph 18 above);
 - (d) The deduction exceeded 25% of gross remuneration: ESTABLISHED — 40.47% (paragraphs 20–22 above);

- (e) The Respondents had prior knowledge of my disability: ESTABLISHED — Annexure H; and
- (f) Significant harm resulted: ESTABLISHED — paragraphs 26–27 above.

PART K — SCHEDULE OF ANNEXURES

The following annexures are attached to and form part of this Founding Affidavit:

Annexure A: Payslip for July 2025 reflecting the unlawful deductions of R14,811.77

Annexure B: Respondents' HCBP Policy (relevant extracts regarding deductions, consultation, and staggered recovery)

Annexure C: Written communication from the Second Respondent's manager misrepresenting the group's staggering policy



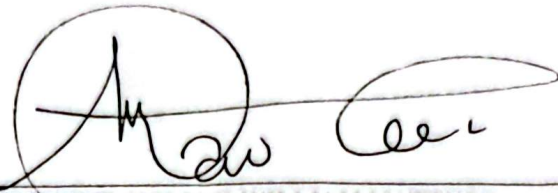
Annexure H: Written communication from Dr Jacques Malan (FCPSYCH(SA)) placing the employer on notice of the Applicant's psychiatric condition and vulnerability prior to the deduction

PART L — PRAYER

31. I respectfully request that this Honourable Court grant the following relief:

- (a) The declaratory orders set out in paragraphs 1.1, 1.2, and 1.3 of the Notice of Motion;
- (b) The payment order of R14,811.77 within 7 (seven) days of the order, as set out in paragraph 2.1 of the Notice of Motion;
- (c) Interest at the prescribed legal rate on R14,811.77 from 23 July 2025 to date of final payment;
- (d) Punitive costs against the Respondents jointly and severally; and
- (e) Such further and/or alternative relief as this Honourable Court deems just and equitable.

I declare that the contents of this affidavit are true and correct to the best of my knowledge and belief and that I have no objection to taking the prescribed oath.



DEPONENT: WILBUR WILLIAM MATTHEE

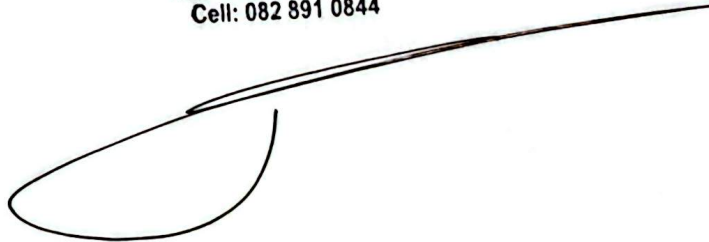
Signed and sworn to before me at DELFT on this 13TH day of
APRIL 2026.

COMMISSIONER OF OATHS

Name: BENJAMIN JAMES MASEMOLA
Address: 18 DIGTEBY CRESCENT VOORBRUG DELFT
Designation: BD 25513
Date of appointment: 13-04-2026



PASTOR BENJAMIN J. MASEMOLA
MARRIAGE OFFICER
COMMISSIONER OF OATHS
No. 18 DIGTEBY CRESCENT
VOORBRUG DELFT 7100
Cell: 082 891 0844



IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN
CASE NO: 2026-077546

WILBUR WILLIAM MATTHEE
Applicant
and
AFROCENTRIC HEALTH (RF) (PTY) LTD
First Respondent
and
MEDSCHEME HOLDINGS (PTY) LTD
Second Respondent



ANNEXURE A

PAYSLIP — JULY 2025

Reflecting deductions of R14,811.77
(Unpaid Leave Recovery: R13,824.32 | Unpaid Leave: R987.45)
Processed by Second Respondent on 23 July 2025 without written consent

PO Box 1101, Florida Glen, 1708
 37 Conrad Street, Florida North,
 Roodepoort, 1709
 t +27 11 671 2000
 www.medscheme.com

Employee Identity Number	Matthee, Wilbur William(Wilbur),Mr. 8909035151087	Employer Name	Medscheme Holdings (Pty) Ltd
Employee Number	7074649	Grade	B4M1
Location	The Boulevard	Position	Care Coordinator.25
Hire Date	01-May-2024	Original Hire Date	01-May-2024
Assignment Number	7074649	Payroll	Medscheme Holdings (Permanent)
Employee Address	Street Number: 15 Street or Name of Farm: Bellevue Street Suburb or District: Voorbrug, Postal Code: 7100	Employer Address	The Boulevard 4th Floor Searle Street Cape Town 7925



Payroll Information		
Period End Date	Tax Period	Payment Frequency
31-Jul-2025	5	Calendar Month

Tax Information		
Tax Status	Tax Reference No	Pay Date
Normal	0694546243	23-JUL-2025

Summary of Payment		
Total Earnings	Total Deductions	Total Net Pay
21,777.04	6,097.75	15,679.29

Earnings	
Description	Amount
Normal Earnings	36,588.81
Unpaid Leave Recovery	(13,824.32)
Unpaid Leave	(987.45)

Deductions	
Description	Amount
Sanlam Funeral Cover	52.00
Bonitas EE	1,471.33
Sanlam Pension Fund EE	2,503.57
UIF Employee	177.12
PAYE	1,743.73
Access Tags Loss	150.00

Fringe Benefits and Additional Info	
Description	Amount
Medical Aid Bonitas ER	2,942.67
PHI Disability ER	469.00
Sanlam Pension Fund ER	2,536.95
UIF Employer Contribution	177.12
Group Life	258.70
Medical Aid Fringe Benefit	2,942.67
Medical Aid Tax Credit	728.00
Monthly Salary Info - CTC	42,796.13
PHI FBT	469.00
Retirement Funding Income %	78.00

YTD Accumulations & Balances	
Description	Amount
Medical Aid Tax Credit YTD	3,640.00
Medical Aid ER YTD	14,713.35
Medical Aid EE YTD	7,356.65
PAYE YTD	23,491.73
Normal Earnings YTD	181,133.44
Total Taxable Income YTD	161,080.84
UIF Employee Contribution YTD	885.60

Net Pay Distribution			
Payment Method	Bank Branch Code	Account Number	Amount
ACB	679000	10961611474	15,679.29

Message(s)
No Message(s) Found

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AFROCENTRIC HEALTH (RF) (PTY) LTD

First Respondent

and

MEDSCHEME HOLDINGS (PTY) LTD

Second Respondent



ANNEXURE B

HCBP POLICY — RELEVANT EXTRACTS

*Human Capital Business Partner Policy provisions governing deductions,
consultation obligations and staggered recovery arrangements*

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TECTED DISCLOSURE ACT (PDA) 2000

188

Thursday, 24 July

Mary-Ann Jones 07/24 10:35

MJ

Acknowledge of Debt (AOD)**Payroll:**

- Payroll to provide a recon on benefits paid during waiting period.
- In cases of a recovery, HCBP must have a consultation meeting with the employee to make arrangements to recover the owed amount.
- Declined cases – payroll to recover unpaid leave and benefits paid
- AOD monthly deductions must not be more than 25% of the employees CTC as per legislation.



07/24 10:54

This doesn't make sense to me right now so they are allowed to deduct more than 50% of my salary at a time?

Mary-Ann Jones 07/24 11:19

MJ

This is for disability

You can go back to the policy and read the caption and the extract-that will give more context

07/24 11:20

but according to BCEA its illegal,

Edited

But im just glad its settled

Mary-Ann Jones 07/24 12:46

MJ

Hi Wilbur, what is illegal?

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Applicant

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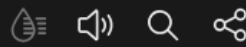


ANNEXURE C

MISREPRESENTATION — STAGGERED RECOVERY POLICY

*Written communication from Second Respondent's manager
incorrectly representing that the AfroCentric group does not
permit staggered debt recovery*

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Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>

Wed, 16 Apr 2025 12:59:04 +0200
 Subject: Meeting Feedback 16 April 2025

ning Wilbur

st you are well.

se find a summary of our meeting yesterday.

Welcome back-I wish you all the best with your new path. Thanks for what you shared and the changes you are making to your life.
 5 days unpaid leave-I have reached out to HR via email regarding this matter but just want to mention that we do not apply staggering of money owed. Email has been sent to HR and feedback will be provided as soon as received.
 Sick note or letter from doctor required to assist with accommodations.
 Accommodations made upon return to work:

1. Allocation to LACE cases only for 2 weeks/until end of the month.
2. Working hours will be from 08h00-17h00
3. 7 working days QA grace period-email sent to QA with request.
4. 3 hours may be worked in in advance per month for doctor's visit. Department only allow 2 hours per month but part of the accommodation made now is due to follow ups with doctor. Process will be reviewed as time goes on (3 months-6 months).



1/3



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Applicant

and

AFROCENTRIC HEALTH (RF) (PTY) LTD

First Respondent

and

MEDSCHEME HOLDINGS (PTY) LTD

Second Respondent



ANNEXURE H

DR MALAN — PRIOR NOTICE: PSYCHIATRIC CONDITION

*Written communication from Dr Jacques Malan (FCPsych(SA))
placing the Respondents on prior written notice of the Applicant's
psychiatric condition and vulnerability
Received before the deduction of 23 July 2025*

Dr Jacques Malan

SPECIALIST - PSYCHIATRIST
MBChB(UCT) FCPSYCH(SA)
PR. NO. 022 000 0449113



Akeso Kenilworth Clinic
32 Kenilworth Road
Kenilworth 7708
Tel: 021 763 4502

drmalanpsychiatrist@gmail.com

The employer

15 May 2025

Re: Mr Wilbur Matthee
Date of Birth: 03/09/1989

Mr Matthee was admitted to Akeso Stepping Stones Clinic on 18 March 2025 due to significant mental health difficulties. He required in patient treatment for severe depression and PTSD. Due to the severity of his illness his initial 3 week treatment period was extended to 6 weeks in order to provide optimal treatment and restore his occupational function to premorbid levels.



However due to major personal and social problems (theft from his home and loss of his pets) and a lack of any remaining sick leave days Mr Matthee was forced to leave treatment early to deal with matters at home. Now that this has settled Mr Matthee should return to hospital to complete his treatment properly. He would ideally be re-admitted to Stepping Stones to finish the remainder of his therapy and complete his recovery program including comprehensive discharge planning. Currently he is at risk and struggles to cope with ordinary daily tasks and occupational requirements and he may relapse further in his mental health if not afforded the time to finish his treatment. He is expected to need 2 further weeks to complete the treatment program and should be admitted as soon as possible.

If you have any queries regarding this request please contact the office.

Kind regards

Dr Jacques Malan